

requested fees and costs, including hourly rates and number of hours, for which motion or proceeding incurred, when incurred and when awarded or affirmed, **as line items in a table, with footnotes identifying the Declaration and Exhibit number that contains the support for each line item.** Moving party shall list the request for a lodestar multiplier as an additional line item for the court to consider.

The court on its own motion continues the hearing to **June 12, 2026 at 9:00 a.m.**

2. 9:00 AM CASE NUMBER: C24-01447
CASE NAME: PAMELA MILLER VS. COSTCO WHOLESALE CORPORATION
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: COSTCO WHOLESALE CORPORATION
TENTATIVE RULING:

Vacated on May 15, 2026 by the court.

3. 9:00 AM CASE NUMBER: C25-00377
CASE NAME: ANGELICA REYNOLDS VS. PEDRO ZARAGOZA
***HEARING ON MOTION IN RE: LEAVE TO FILE 2ND AMENDED COMPLAINT**
FILED BY:
TENTATIVE RULING:

The unopposed motion of Plaintiff for Leave to File a Second Amended Complaint is granted.

1. Plaintiff is directed **to file the Second Amended Complaint** within 15 days of May 22, 2026.
2. Defendants shall have 30 days from the date of service of the Second Amended Complaint to file responsive pleadings

4. 9:00 AM CASE NUMBER: C25-01045
CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: LYFT, INC.,
TENTATIVE RULING:

Before the Court is a motion by defendant, Lyft, Inc. to compel the arbitration of plaintiff's claims against it. Both plaintiff and the other defendants oppose the motion. A court must order arbitration if it determines that a valid agreement to arbitrate exists. Here, an agreement exists, no valid defense to enforcement has been shown, and the claims at issue are within the scope of the agreement.

The motion is **granted**. Lyft and plaintiff, Jose Ramon Lopez-Valdez, are ordered to submit the matter to arbitration. This proceeding is hereby stayed. **The Court sets a case management conference on December 3, 2026, at 8:30 a.m.** for a status update on arbitration.

I. Background

Plaintiff brought this action against Lyft and other defendants after he incurred injuries in a collision between the vehicle in which he was a passenger, and other vehicles. Plaintiff alleges a single cause of negligence against all defendants. Lyft seeks to compel arbitration based on its contention that plaintiff agreed to Lyft's terms of service, which require arbitration of "ALL DISPUTES AND CLAIMS" between plaintiff and Lyft.

In support of its motion, Lyft presents evidence that its terms of service, to which plaintiff agreed, contain mandatory arbitration provisions. (See Declaration of Colton Carr in Support of Motion, hereinafter "Carr Decl.", Ex. 3, pp. 22-31, ¶17.)

Plaintiff opposes the motion, arguing the Court cannot order arbitration because there are third-party defendants in this case who are not bound to the arbitration agreement.

Defendants, D & A Carrier and Jose Noriega, also oppose the motion because they contend that their presence in the action brings this case within the scope of Code of Civil Procedure, § 1281.2, which permits a court to deny enforcement of an arbitration agreement under certain circumstances, discussed below.

On reply, Lyft argues the third-party defendants have no "standing" to oppose the motion because they are not parties to the contract. Lyft cites several cases, none of which specifically state that non-parties cannot oppose a motion to compel arbitration, though the contention may be correct. The Court has, in any event, considered the arguments made by the opposing defendants and nothing in that opposition changes the outcome here.

II. Standard

A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.) Accordingly, a petition to compel arbitration should be granted if the court determines that an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2.)

The party seeking arbitration bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove its defense. (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580.)

III. Analysis

A. Existence of Agreement

In California, contract formation requires free and mutual consent communicated to each other. (Civ. Code, § 1565.) Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties. (*Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 788.)

Here, Lyft provides evidence of plaintiff having electronically viewed and acknowledged the Arbitration Agreement. (Carr Decl., ¶ 11-18 [describing plaintiff's usage of platform and agreement to terms of service].) The scope of the agreement covers "ALL DISPUTES AND CLAIMS BETWEEN US" with limited exceptions not applicable here. It specifically describes, "any dispute, claim or controversy, whether based on past, present, or future events, arising out of or relating to: [the terms of use], the Lyft Platform, the Rideshare Services, the Lyft Services, [...] your relationship with Lyft, [...]"

state statutes, if any, addressing the same or similar subject matters, and all other federal and state statutory and common law claims.” This would encompass the claims made in this lawsuit and plaintiff does not argue otherwise. Plaintiff also does not deny agreeing to the terms of use.

Instead, plaintiff argues that there is no agreement between Lyft and the *other* defendants. The lack of an agreement with respect to third parties does not negate the existence of one with respect to Lyft and plaintiff. Lyft has met its burden to show the existence of an agreement to arbitrate.

B. Enforceability

1. Delegation of Enforcement Issues

Lyft asserts that it is the arbitrator who must decide whether the agreement is enforceable based on the delegation clause.

While challenges to the validity of the underlying contract are generally for the arbitrator to decide, challenges to the validity of the arbitration clause itself are generally resolved by the court in the first instance. (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 891-892.) Still, parties may agree to delegate authority to the arbitrator to decide threshold issues, but given the contrary presumption, evidence that the parties intended such a delegation must be “clear and unmistakable” before a court will enforce a delegation provision. (*Id.* at 892.) This test reflects a “heightened standard” of proof. (*Ibid.*)

Here, the agreement provides expressly that “[a]ll disputes concerning the arbitrability of a Claim (including disputes about the scope, applicability, enforceability, revocability or validity of the Arbitration Agreement) shall be decided by the arbitrator, except as expressly provided below.” The agreement proceeds to describe the exceptions, which are limited to class actions and PAGA claims, neither of which apply in this case. In any event, neither plaintiff nor third-party defendants argue that the delegation clause is not “clear and unmistakable.” The Court concludes that the argument is waived and the delegation clause is sufficient.

Even if the delegation clause were not clear and unmistakable, thereby leaving the enforceability question to the Court, the Court would agree with defendant that the FAA prevents it from declining to enforce the agreement based on third-party issues.

2. Applicability of the Federal Arbitration Act

Defendant asserts the FAA governs the agreement here by its express terms. The issue is critical because, in cases involving both parties and nonparties to an arbitration agreement, the discretion a court holds pursuant to the California Arbitration Act (“CAA”) is broader than its discretion under the FAA.

Plaintiff contends the motion must be denied pursuant to CAA, specifically Code of Civil Procedure, § 1281.2. That section provides, in relevant part:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the **court shall order the petitioner and the respondent to arbitrate the controversy** if it determines that an agreement to arbitrate the controversy exists, **unless it determines** that:

[...]

(c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. [...]

[...]

If the court determines that a party to the arbitration is also a party to litigation in a pending court action or special proceeding with a third party as set forth under subdivision (c), the court (1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action or special proceeding; (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action or special proceeding.

(Code Civ. Proc., § 1281.2.)

Here, there is little doubt that the action arises out of the same transaction (an automobile collision), and while Lyft disputes a possibility of conflicting rulings on common issues of law or fact, the case does appear to present such risk.

Still, plaintiff's assertion that the motion "Must be Denied" based on the above statute (Opposition, 3:13) is incorrect. First, the lack of an agreement with respect to third parties does not negate the existence of one with respect to plaintiff, as already concluded above. Secondly, while the statutory provision cited by plaintiff allows the Court a *menu* of options; it does not *mandate* denial of a motion to compel arbitration. Finally, the procedural rules in the CAA are inapplicable where the FAA's procedural rules govern, as explained below.

As stated in *Rodriguez v. American Technologies, Inc.* (2006) 136 Cal.App.4th 1110, 1117-1118:

Code of Civil Procedure section 1281, echoing the FAA's language and its policy favoring arbitration, likewise provides that a written arbitration agreement "is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract." ***Unlike the federal statute, however, California law does not require a court to stay judicial proceedings pending the completion of arbitration in all cases.*** Under section 1281.2(c), if a party to an arbitration agreement is also a party to related litigation with a third party that creates the risk of conflicting rulings on a common issue of law or fact, "the court (1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action or special proceeding; (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action or special proceeding." (*Ibid.*) Thus, while the FAA does not "deal with the special practical problems that arise in multiparty contractual disputes when some or all of the contracts at issue include agreements to arbitrate[,] California has taken the lead in fashioning a legislative response to this problem, by giving courts authority to consolidate or stay arbitration proceedings ... in order to minimize the potential for

contradictory judgments.” [citation].

Here, the second sentence of the agreement states: “This agreement to arbitrate (“Arbitration Agreement”) is governed by the Federal Arbitration Act (“FAA”); but if the FAA is inapplicable for any reason, then this Arbitration Agreement is governed by the laws of the State of Delaware, including Del. Code tit. 10, § 5701 et seq., without regard to choice of law principles.” (Carr Decl., Ex. 3, p. 22, ¶ 17.) None of the parties here advocate for applying Delaware law. Delaware law is also not necessary to consider here because the FAA’s invocation is controlling.

Typically, the “FAA’s *procedural* provisions (9 U.S.C. §§ 3, 4, 10, 11) do not apply unless the contract contains a choice-of-law clause expressly incorporating them.” (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 345 [citation omitted].) However, when parties specify, as they did here, that the agreement is governed by the FAA, the statement is sufficiently broad to encompass both the procedural and substantive provisions of the FAA. (*Victrola 89, LLC, supra*, 46 Cal.App.5th at 355 [holding that parties may voluntarily elect to have the FAA govern enforcement of the arbitration agreement, and that “pursuant to the FAA” was broad enough to displace state procedural rules].)

Because the agreement here provides expressly that the FAA governs, and because the Court holds this includes both procedural and substantive terms, the Court has fewer options than those available under Code of Civil Procedure section 1281.2. This is because, based on preemption principles, “the court’s only option in these circumstances is to stay the court proceeding and compel the arbitration.” (*Rodriguez, supra*, 136 Cal.App.4th at 1115.)

Third-party defendants’ argument that the claims here are not subject to arbitration based on an exception in the agreement (based on Code of Civil Procedure § 1281.2), is meritless. The language in the agreement excepts from arbitration certain “types of claims” including “claims that may not be subject to arbitration as a matter of generally applicable law not preempted by the FAA.” The exception for “claims not subject to arbitration” appears in a list of categorical exceptions such as small claims actions, PAGA actions, workers’ compensation claims, state disability insurance claims, unemployment insurance claims, and sexual assault claims. These are particular categories of claims. Code of Civil Procedure § 1281.2 does not describe any particular category of claims.

Accordingly, the motion must be granted. Lyft and plaintiff shall submit the action to arbitration and the action is otherwise stayed, including all proceedings against D & A Carrier, Inc.; Jose Noriega, Michael Jenkins, and Intervenor, Mobilitas Insurance Company, as well as any cross-actions filed by the parties.

5. 9:00 AM CASE NUMBER: C25-02220

CASE NAME: MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. VS. NANCY YEE

***HEARING ON MOTION IN RE: STRIKE PLTFS STRIKE REQUEST FOR ENTRY AND/OR VACATE CLERK
DEFAULT**

FILED BY: 2246 LAKE CREST COURT LAND TRUST

TENTATIVE RULING:

Introduction

Before the Court is Defendants Nancy Ngyuen Yee and Robert Frank Yee’s motion for an order: